

Commentary on Eleued Law

Created by the King of Eleuedla

Table of Contents

Introduction.....	1
On the Constitutional Tradition.....	3
Citations.....	6

Introduction

The Eleued source of law is quite unlike that of the West. The modern legal systems of the west are fraught with errors regarding justice, charity, philosophy, and many other matters. This is due to their systems being set up upon the Enlightenment authors. The Eleued system instead relies upon a separate corpus of philosophical literature entirely.

Eleued law is based upon the philosophies of the Catholic Church. Here, another point of comparison is to be made. The Eleued government affirms, as *Immortale Dei* states is the duty of every government^[1], that the True Religion is the Catholic Church. In the west, one might say that the public religion of the state is the *cultus libertatis*, or the cult of liberty.

The Eleued state affirms in all constitutional documentation that “God, the beginning and end of all things can be known with certainty, by the natural life of reason, as a cause is known by its effects, from those things that are made, that is by the visible works of creation and can equally be demonstrated.”^[2] Additionally, it accepts Sacred Scripture and Revelation, and holds to the faith of the Apostles, which makes up the body of believers, the Catholic Church.^[3]

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- 1 *Immortale Dei*, point six: “As a consequence, the State, constituted as it is, is clearly bound to act up to the manifold and weighty duties linking it to God, by the public profession of religion.”
 - 2 Oath against Modernism, point one: “And first of all, ...”
 - 3 *Supra* points 2-5: “Secondly, ... held previously”

It puts into practice that statement by the esteemed Engelbert Dollfuss:

“The basis of all society, and especially of every society organised on Christian principles, must be the family.”^[4]

Here again we see contention between the Eleued source of law and that of modernist West. The Eleued conception of the State is expressed thusly:

“... when several families are united, and the association aims at something more than the supply of daily needs, the first society formed is the village.”^[5]

Now, the village in Eleuedla makes up the State, whereas in Western Society, the State is formed from individuals. Now, this is not to say that the individual in Eleued society is swept away, of course not, for humans have an inherent dignity by being made in the image of God.^{[6][7]}

Likewise, the Eleued State, in its philosophy denounces the errors of the fascists, which is that there is no value outside the State.⁸ This means that the State may form a Nation by its own will, which is false, as was shown that the association of families forms the State and that the unified values of those families (the Nation) is a prerequisite to political unification.

It also denounces the philosophy of modernist individualism which states that there is no difference between the cultures of the World, and that all governments can become one Nation-State. Another error denounced is the theory that one can live without the aid of another, or that the State corrupts the human soul.

Here finally are the various influences on the Eleued school of law and their uses in it:

- I. Aristotle, the Works of Saint Augustine, of Saint Thomas of Aquinas, the Holy Scriptures, and the works of the Holy Fathers of the Church as the foundation for general philosophy;
- II. The Works of Pope Leo XIII and of Thomas Storck regarding political and economic philosophy in particular;
- III. The Works of Pope Saint Pius V and Pope Saint Pius X in inspirations to discipline and works against errors, as well as citations to the Catechism of the

⁴ Statement at Feldkirch made in 1934.

⁵ De Politica, bk. 1, ch. 2

⁶ Genesis 1:27: “*Et creavit Deus hominem ad imaginem suam*”

⁷ *Supra* 2:7: “*et inspiravit in faciem ejus spiraculum vitæ*”

⁸ Doctrine of Fascism: “The Fascist conception of the State is all embracing; outside of it no human or spiritual values can exist, must less have value”

Council of Trent;

IV. The Historical Examples of the Holy Roman Empire, of Austria-Hungary, of the British Empire, of the United States, and of the Ständestaat on actual practice, implementation, æsthetic influences, &c.

On the Constitutional Tradition

Although the Eleued Nation-State is based and inspired upon older philosophies, theologies, and an older corpus of inspiration, the Nation-State itself is one year old as of 04-07-2026. It declared independence from the United States as the Provisional State of Clovisia on the ninth of March, 2025.

Despite its youth, it has already developed a legal development of its Constitutional basis and its traditions. The first two texts published by what would eventually become the Kingdom of Eleuedla are two acts: the *Provisional Act on Diplomacy* and the *Provisional Act on Wartime*. These two acts establish the basis of the Constitution. In the modern day, only the first is considered “Constitutional.”⁹ The latter is considered “pseudo-Constitutional,” meaning it had an influence on Constitutional development, but isn’t considered part of the corpus of Constitutional text.

Since, the declaration of those provisional acts, on 08-08-2025 and on 12-08-2025, respectively, there have been three additional acts that comprise the Royal Constitution: the *Royal Decree on Government*, the *Royal Decree on State Distinctions*, and the *Parliament Act (2026)*.

Unlike the American constitution, and many other constitutions across the World, the Eleued Royal Constitution uses an uncoded constitutional system. This means that the Royal Constitution is made up of many acts, of court case rulings, of traditions, &c. However, unlike the codified constitution of the United Kingdom, the Royal Constitution still requires a consensus to amend it using normative legislation. The *Parliament Act (2026)*, Article VI, §1 states the following:

“The amendment of the Royal Constitution, of which shall consist of this Act, of the Royal Decrees 26.1 and 26.2, and of the Provisional Act on Diplomacy, shall require only the prerogative of the Crown and the supermajority of the [States], which shall constitute a two-thirds vote, in the

⁹ Parliament Act (2026), Article VI, §1

House of Lords in a special session, of which the Crown Prince and the Archduchy of Saint Augustine shall not [vote].”¹⁰

This formulates the Eleued view of constitutionalism: that a constitution should arise naturally and be continued through tradition, and that it should be able to adapt to the times and situations which arise. Now, this does not mean that the Royal Constitution can simply change its core principles through a court case or the development of modern heresies (of which modernism and liberalism are the main heresies to defend against). This is because the King is to provide the original interpretation of the law or Constitutional act in question, and the context of which it was promulgated:

“In trials regarding interpretation of the Constitution, *the Crown shall be called directly as a witness as to the original interpretation* and reasoning for amendments and declarations.”¹¹

A tradition not explicitly mentioned is the right of the States to rebel, whether through means of war against the Archduchy of Saint Augustine, or through means of peaceful acts in trial in the House of Lords, when the Royal Constitution is being violated by the King. This idea stems from the feudal contract.

It is also important to discuss the constitutional drafts and context that came about to develop this system of Constitutional development. There were two drafts made that were planned to become the Royal Constitution before this uncoded formulation was created. In fact, one of these planned Constitutions was thought, for some months, to *be* the valid Constitution. The main point of confusion that led to this was the final statement of the Constitution: “Declared on 16:00 of this 50th day of Miss, in the year of Our Lord 2025 and ratified.”¹² This ratification never occurred, and if it had, it would have stated the exact time of ratification. Nevertheless, these documents are also considered “pseudo-Constitutional,” and do validly comprise part of the tradition of the Royal Constitution.

Present in both those drafts is the Preamble which presents the goals of the Nation-State clearly. The Preamble begins with a prayer and ends with the reason for independence from the United States of America.

¹⁰ *Ibid.*

¹¹ *Ibid.*, Article II, §2a

¹² Unratified Constitution of the Kingdom of Eleuedla, Title V, Ratification

“§1 We, O Lord, having no good without You, we humbly pray for the whole unity of the Eleued nation and for the protection of the newly formed Eleued State. If this be Your divine Will, grant us this. Though Christ, our Lord–
Amen.

§2 The goals, therefore, of our monarchist and Catholic nation-state are:

- (a) for the promotion of traditionalism
- (b) for the promotion of all to the Catholic faith
- (c) the unification of the Eleued people; and
- (d) the opposition against the errors and evils of modernism and

liberalism

§3 Moving away from secular democracy, we believe a separation from the United States of America is necessary until the day where it accepts the Catholic and Apostolic Faith. We assert our independence from the United States, primarily, and from Scotland [secondarily], as the Kingdom of Eleuedla.”¹³

Here we see the goals upon which the Eleued State is built upon and which all States must accept, as well as the ideas that justified the original split of Eleuedla. We also see a difference between the old political theory of the day and the current political theory which has presently developed. The line “until the day where it accepts the Catholic and Apostolic Faith” implies that the Eleued State and Crown will eventually cease to exist upon the prerequisite that America adopts the Catholic faith. However, in the current political theory, it is commonly accepted that the Crown of Eleuedla can not be dissolved except by the will of God, who provides authority to all governments, and that all human attempts to do so are illegitimate.

Another point of difference between the old political thought and the new is in Title I, Article III, §6-7 which establishes that all rights may be stripped “in the case of criminal activities.”¹⁴ Additionally, it states that the State may add upon rights, granted that they “prayerfully [discern] Holy Scripture and the traditions of the Catholic Church.”¹⁵ In the modern political thought, there is a separation between rights coming from human dignity and those rights that come from civil duties.¹⁶

¹³ *Ibid.*, Preamble

¹⁴ *Ibid.*, Title I, Article III. §6-7

¹⁵ *Ibid.*

¹⁶ Royal Decree on Government, Article IV

Likewise, there are many other differences between the political philosophy expressed in the current Royal Constitution and the political philosophy presented closer to the foundation of the Eleued State.

However, there are also similarities. This is primarily shown in what rights exist, as well as the civil duties that exist. Additionally, we see that the line “[it] is the duty of all citizens to change the government if it commits evil”¹⁷ implicitly preceded the right of rebellion present in the traditions of the modern Royal Constitution.

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17 Unratified Constitution of the Kingdom of Eleuedla, Title I, Article III.§8